

POLICY: 06-01	DATE: 07-01-2012	REVISION DATE:
TITLE: Training, Organization and Administration		PAGE: Page 1 of 6
RESPONSIBLE AUTHORITY: Chief Deputy		
REFERENCES: North Carolina Administrative Code 12 NCAC 10B; CALEA 33.1.1; 33.1.2; 33.1.3; 33.1.4; 33.1.5; 33.1.6; 33.1.7 ; 33.3.1; 33.2.3; 33.2.4; 33.3.1		

GENERAL PURPOSE: To establish the responsibility and requirements for the continued training of all the employees of the Sheriff's Office.

POLICY: In order to provide law enforcement services that meet the needs and expectations of the citizens of North Carolina, the Sheriff's Office has made a commitment to a training program that improves the skills, knowledge, and abilities of all Sheriff's Office employees.

SPECIFIC PROCEDURES:

- A. Goals: The Sheriff's Office has made a commitment to the following training goals:
 1. Prepare the Sheriff's Office to achieve goals in an effective and efficient manner.
 2. Present the Sheriff's Office policies and procedures so as to maximize understanding by Sheriff's Office employees.
 3. Identify professional development needs, and attempt to match those needs with organizational changes and objectives.
 4. Present job-related and practical training courses designed to enhance Sheriff's Office employees' current job performance and career development.
- B. All formal training and/or education approved or paid for by the Sheriff's Office shall be clearly and directly beneficial to the Sheriff's Office, and shall be designed to improve the effectiveness of already-qualified members. Through the achievement of these training goals, the Sheriff's Office can continue to provide quality services to local agencies, and participate in the protection and safety of the citizens of the state.
- C. The Training Officer shall possess the authority necessary to direct members at all levels of the Sheriff's Office to attend specific training as required in order to maintain certification and proficiency.

D. Function (CALEA 33.1.2)

The training functions include, but are not limited to:

1. Planning and developing training programs, including documentation of formal lesson plans for all in-house training.
2. Notifying personnel of required training.
3. Notifying personnel of training opportunities available.
4. Maintaining all training documentation.
5. Ensuring that personnel attend required training.
6. Implementing training programs as deemed appropriate through task analysis, training committee recommendations and special situations which may dictate specific training requirements.
7. Selecting certified instructors to teach in specific areas as required.
8. Continuous evaluation of current training programs to ensure that division needs are met.
9. Coordinating with outside agencies to provide training programs which are beneficial to the Sheriff's Office goals.

E. Training Committee

A committee, consisting of four employees, one from each division, will have the authority and responsibility for evaluating various training programs of the Sheriff's Office and to assist in the development and evaluation of training needs. The committee will be made up of an employee from each division appointed by the Division Commander and approved by the Chief Deputy. The relationship of the committee to the training function will be advisory. The committee reports to the Chief Deputy who will designate a chairperson. **(CALEA 33.1.1.a, b, c, d, e)**

F. Curriculum Development

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1. Training needs and curriculum will be determined through the review of a job analysis and other sources (inspection reports, observations of personnel, etc.).
 2. The Training Officer will be responsible for the curriculum development which must be submitted to the training committee for approval.

(CALEA 33.1.1.d)

G. Training Liaison

1. The Training Officer shall act as liaison for the North Carolina Justice Academy, as well as schools, workshops, and seminars sponsored by other organizations which may be beneficial to Sheriff's Office Personnel. Training opportunities should be assessed for the most cost effective avenue. In some instances, it may be more cost effective to sponsor training for Sheriff's Office personnel in-service than to send them to training offered elsewhere. In carrying out this responsibility, the Training Officer shall be cognizant of the North Carolina Training Standards Commission set forth in 12 NCAC 10B.
2. The Chief Deputy will approve or disapprove all purchase requests pertaining to training.

H. Lesson Plan Development (CALEA 33.1.4)

1. All training programs conducted in-house, as well as training provided from outside vendors, will require that lesson plans be developed for utilization by the instructor of the course. Lesson plans will include at a minimum:
 - A. Course goals.
 - B. Performance/learning objectives.
 - C. The content of the training.
 - D. Instructional techniques (i.e., conference, field experiences, presentations, simulations, etc.). **(CALEA 33.1.4b)**
 - E. Testing mechanisms to measure achievement of learning objectives. **(CALEA 33.1.4d)**
2. Lesson plans may include competency-based testing to measure the participant's knowledge and achievement of the learning objectives. However, all high liability courses (firearms, use of force, first aid, etc.) shall require successful completion of a hands-on or written test.
3. Performance objectives will specify, at least, the information the participant is required to know, the skill that must be demonstrated, and the conditions or circumstances under which the skills will be used or performed. The feedback related to the achievement of the performance objective may enable the instructor to relate training directly to the job performance that will be expected by supervisors. **(CALEA 33.1.4a)**

4. All lesson plans must be submitted to the Training Officer for approval.
(CALEA 33.1.4c)

I. Training Attendance and Documentation **(CALEA 33.1.2)**

1. Each participant must attend all sessions of any training course in which he/she is enrolled, except for absences approved by the Training Officer or the participant's supervisor.
2. Attendance at courses will be documented on a daily attendance roster. This form will be maintained as part of the course file. No participant will receive credit for the course if absences exceed 10% of the total course hours.
3. The Training Officer may schedule make-up work to be completed during the course in which the participant is enrolled. The make-up work will be comparable in content and quantity to the instruction missed. The Training Officer will maintain on file any make-up work performed by a participant.
4. A participant must achieve a score of at least 70% on training course examinations, if applicable, in order to receive credit for the course. Qualifications for firearms are in accordance with the Sheriff's Office policy pertaining to use of force.
5. A participant who fails to achieve a passing score will be deemed to have failed the course. In the event of such an occurrence, a corrective course of study may be identified or developed to respond to a remediation need. The Training Officer shall identify and document the need for remedial training through observation of inadequate performances, testing, or discipline. **(CALEA 33.1.5)**

J. Reimbursement of Expenses Related to Training: Employees that attend training classes or seminars that require travel and/or lodging may be reimbursed for registration, travel, meals, books, materials, and incidental expenses in accordance with county policy. Employees must submit the Travel Reimbursement form within fifteen (15) days of their return. **(CALEA 33.1.3)**

K. Training Record Maintenance **(CALEA 33.1.6)**

1. Training records shall be maintained in the Training Office for each employee. In addition to the training staff, the personnel staff will have access to these files.
2. Upon completion of an in-house sponsored course, the employee's training file will be updated to indicate completion of the course. Employees who attend external training must submit a certification of the course or other appropriate documentation that shows proof of completion of a course. Training records may not be updated without proper documentation.

3. Information contained in the employee's training record includes at least the date of the training program, the hours of instruction, certificates received, if any, attendance at the course, and test scores, if applicable.
4. The Training Officer shall maintain class files for all programs/courses offered. The class file will contain the course content, the attendees, and attendee performances, and instructor certifications on required course activities as measured through testing instrument. **(CALEA 33.1.7a, b, c)**
5. Both the Personnel Office and the Training Office shall ensure that the confidentiality of training records is maintained.

L. Training Instructors

1. The Training Officer, Assistant Training Officers, and Adjunct Instructors shall possess and maintain a general instructor certification issued by the North Carolina Law Enforcement Training and Standards Administration. Specialty Instructor Certifications will be maintained by individuals instructing high liability areas as designated by North Carolina Training and Standards Administration. All North Carolina General Instructors are trained in:
 - a. Lesson Plan Development **(CALEA 33.3.1a)**
 - b. Performance Objective Development **(CALEA 33.3.1b)**
 - c. Instructional Techniques **(CALEA 33.3.1c)**
 - d. Testing and Evaluation Development **(CALEA 33.3.1d)**
 - e. Resource Availability and Use **(CALEA 33.3.1e)**

M. Training by outside agencies

1. The Lee County Sheriff's Office avails itself of specialized training in institutions not operated by this agency.
2. In order to ensure that training needs are met and to safeguard the interests of the Sheriff's Office, Central Carolina Community College provides such training under the rules and regulations of the North Carolina Training and Standards Commission. To further safeguard the interests of both this agency and the various institutions that provide such training, the legal liabilities of this agency and the specific institution are set out in "Memorandums of Understanding". **(CALEA 33.2.4)**

- 3 The legal basis for participation in training programs with other institutions, the relationships of this agency's training function and this agency to the institution, the process for providing agency input to the training program, the circumstances under which this agency provides staff, facilities, instructor, and/or other resources to the institution, financial obligations of the agency to the institution, and the method of determination of the legal liability of the participating institutions are provisions set out in detail in the "Memorandum of Understanding" that are entered between the Sheriff's Office and the institution. **(CALEA 33.2.3)**

Approved:

Tracy L. Carter, Sheriff

POLICY: 06-02	DATE: 08-01-2012	REVISION DATE:
TITLE PAGE: Field Training Program		PAGE: 1 of 6
RESPONSIBLE AUTHORITY: Chief Deputy		
REFERENCES: CALEA; 33.4.1; 33.4.3; 33.4.2; 33.5.3		

GENERAL PURPOSE: To define and establish guidelines for Basic Training and initial Field Training of a probationary Deputy.

POLICY: All newly sworn members of the Sheriff's Office shall have successfully completed a North Carolina Criminal Justice Basic Law Enforcement Certification course before taking the oath of office for a Deputy Sheriff. All probationary Deputies shall complete a Field Training course under the direction of the Training Division.

SPECIFIC PROCEDURES:

A. Probationary Deputy

1. A Probationary Deputy is a newly sworn member who has not completed the Field Training Program and has been employed by the Sheriff's Office for less than one year.
2. A Probationary Deputy hired for a full-time position within the Lee County Sheriff's Office will initially be assigned to the Training Section until completion of the FTO Program. Once the Probationary Deputy has completed the FTO Program he/she will then be assigned to a section depending on the needs of the Sheriff.

B. Academy Training

1. The Lee County Sheriff's Office normally hires currently certified officers who have passed a Basic Law Enforcement Training Academy accredited by the North Carolina Training and Standards Commission.
2. All Deputies must be trained to the standards set forth by the North Carolina Sheriff's Training and Standards Commission.
3. No employee of the Sheriff's Office shall be allowed to carry a firearm or be placed in a position to make an arrest unless certified as a Law Enforcement Officer. (CALEA 33.4.1)

C. Orientation

1. Upon being hired, new Probationary Deputies will have to undergo a two (2) week orientation course.
2. This course will give the Probationary Deputy time to get accustomed to the Sheriff's Office operations, and will also provide instruction on Sheriff's Office policies and procedures, organization structure, an overview of the Accreditation process, and the expectations of the office regarding a Probationary Deputy. **(CALEA 33.5.3a, b, c)**
3. At the completion of the orientation, new Deputies will be assigned to a Field Training Officer for a period of 336 hours or 8 weeks of on-the-job training. The Field Training Officer will be responsible for the recruit and will act as the recruit's supervisor until the training period is complete. **(CALEA 33.4.3a)**
4. The Sheriff's Office requires Probationary Deputy Training Programs as developed and authorized by the Training Division.
 - a. A curriculum based on job task analysis of the most frequent assignments of officers who complete recruit training. **(CALEA 33.4.2a)**
 - b. Use of evaluation techniques designed to measure competency in the required skill, knowledge, and abilities. **(CALEA 33.4.2b)**
 - c. To provide equal and standardized training to all newly hired sworn members, and provide remedial training in those areas where deficiencies are identified.
 - d. To build on the foundation of knowledge given at the academy and/or obtained through previous law enforcement experience, thereby creating an environment which facilitates the development of new skills, as well as increase the proficiency in those they have already acquired.
 - e. To ultimately increase the overall efficiency and effectiveness of the Sheriff's Office by enhancing the climate of professionalism demanded by the ethical standards of law enforcement.

D. Program Duration

1. The program shall consist of a minimum of four hundred and twenty hours (420) hours conducted under the direction and supervision of a F.T.O. and is to be completed in ten (10) weeks. This road certification will consist of, but not limited to, patrol duties, prisoner and 10-73 transport, court testifying and other activities deemed necessary under the F.T.O. program. During this period of time, the trainee shall be evaluated on his/her performance according to written guidelines and procedures set forth under this program. **(CALEA33.4.3a)**
2. If upon completion of this four hundred and twenty (420) hour minimum, it is determined by the F.T.O. and the F.T.O. supervisor that the trainee is performing below acceptable standards according to written guidelines and procedures, the trainee shall be allowed sixty (60) more hours of field training. This additional training should concentrate on the areas of below acceptable standard performance in an attempt to bring the trainee's performance to a level of acceptable standard. **(CALEA 33.4.3h)**
3. If it is determined after the additional sixty (60) hours of field training that the trainee's performance has not improved to an acceptable standard, the evaluating F.T.O. shall report in writing to the Division Commander and the F.T.O. Supervisor of the F.T.O.'s findings. At that time, the Sheriff or his designee shall be notified of the findings for possible termination or transfer to another division that does not require a road certification. **(CALEA 33.4.3h)**
4. If a trainee is determined to be performing at acceptable standards after the four hundred and twenty (420) hour or two hundred and forty (40) hour period, and it is the opinion of the evaluating F.T.O. that the trainee should be allowed to perform solo-patrol duties, the F.T.O. shall notify the Division Commander and F.T.O. Coordinator of their findings in writings. If the Division Commander and F.T.O. Coordinator are in agreement with the F.T.O.'s findings, the trainee shall be authorized to perform solo-patrol and an authorization form signed by the Division Commander and F.T.O. Coordinator shall be placed in the trainee's training file maintained by the Training Division. **(CALEA 33.4.3h)**
5. All trainee's shall be evaluated on a daily basis to be completed on the date of evaluation. All original F.T.O. evaluation forms shall be signed by the trainee and the evaluating F.T.O., and be forwarded to the Training Division to be placed in the trainees' training file. **(CALEA 33.4.3h)**
6. Adjustments to the minimum time are not authorized. 420 hours of FTO Training must be completed regardless of prior experience.

7. During the Field Training Program, Field Training Officers shall ensure that new Probationary Deputies are rotated through sufficient assignments to ensure a general overall understanding and performance capability upon being released from training status. **(CALEA 33.4.3f)**
8. Probationary deputies will be rotated through every section of the Sheriff's Office. However, some exposure outside of the Probationary Deputy's Division may be desirable.

E. Selection and Training of Field Training Officers

1. All assignments to the Field Training Program will be made at the discretion of the Major of Operations.
2. To be eligible for selection as a Field Training Officer (FTO), the Officer should either be certified as a basic law enforcement instructor or complete a Field Training Officer's Class and have two years experience. **(CALEA 33.4.3b)**
3. FTOs who are certified instructors should, when possible, participate as guest instructors in the basic law enforcement program. This will enable FTOs to maintain proficiency in the latest techniques being taught in Basic Law Enforcement Training (BLET). In-service training will also be provided as may be appropriate to upgrade FTOs knowledge and skills on an ongoing basis. **(CALEA 33.4.3d, e)**
4. FTOs will remain under the direction and control of their immediate supervisor, but will perform Field Training duties in coordination with the FTO Supervisor. **(CALEA 34.4.3c)**

F. Responsibilities of Field Training Officers

1. If problem areas develop during the training period, the FTO assigned to the recruit will bring, in writing, the problems to the attention of the FTO Supervisor. The supervisor and the FTO will then attempt to work out a satisfactory solution.
2. If the supervisor and the FTO are unable to arrive at a solution, or if the problem appears to be a major one, the Major of Operations will be advised of the situation.
3. At the end of the training period, the FTO currently assigned to the recruit shall submit his/her opinion as to the recruit's readiness for duty. This will be accomplished by submitting a report to the Chief Deputy who will then make the final decision. **(CALEA 33.4.3h)**

4. The report submitted to the Chief Deputy by the assigned FTO shall be based on the following guidelines as reflected in the Field Training Program Guide. **(CALEA 33.4.3g)**:
 - a. Demonstration of appropriate officer safety and use of force;
 - b. Demonstration of the ability to perform essential and critical tasks of the job or assignment. (e.g., operate equipment, handle firearms, complete reports, etc.);
 - c. Behavior does not violate Lee County Sheriff's Office code of conduct policy (e.g., substandard appearance, abuse of position, unethical behavior, etc.);
 - d. Maintains and operates Lee County Sheriff's Office vehicle properly and in compliance with related policy (e.g., vehicular pursuit, emergency vehicle operations, etc.);
 - e. Demonstrates an understanding of the Lee County Sheriff's Office policy and procedures (e.g., arrest procedures, radio procedures, etc.);
 - f. Demonstrates an ability to follow the law and legal procedures. (e.g., search and seizure, warrants arrests, interrogations, etc.);
 - g. Demonstrate an understanding of the overall goals and missions of the Lee County Sheriff's Office (e.g., types of cases accepted, priorities, etc.);
 - h. Demonstrate an understanding of the Lee County Sheriff's Office organizational structure and the functions of the various divisions within the agency;
 - i. Demonstrate the ability to utilize existing Lee County Sheriff's Office resources efficiently (e.g., knows how to get a criminal history, knows where to refer media inquiries, understands how and where to submit evidence, etc.); and
 - j. Demonstrates an appropriate attitude and behavior towards other law enforcement officers, to include Lee County Sheriff's Officers, as well as victims, witnesses, suspects, and citizens.
 - k. All trainee's are to be evaluated equally and unbiased according to written guidelines and procedures set forth by the F.T.O. Supervisor. The F.T.O. Supervisor's responsibility is to oversee

and supervise the F.T.O. program and is appointed this responsibility by the department Training Officer.

5. If, at the end of the training period, the FTO assigned to the Probationary Deputy determines that the recruit is not ready to be released from the program, the FTO will indicate this in the evaluation report, and state what areas the recruit needs improvement. However, the Patrol Commander will make the final determination as to the recruits readiness.
6. If the Patrol Commander in consultation with the F.T.O. Supervisor determines that the recruit should remain in the program, a meeting will be set up with other field training personnel to determine the areas needing development.
7. If in the opinion of the Patrol Commander, the F.T.O. Supervisor, and the FTO, the Probationary Deputy would not improve with additional remedial training, this conclusion will be forwarded to the Chief Deputy. Any potentially adverse recommendation will be accompanied by copies of the recruit's entire training file.

G. Retraining of Certified Personnel

If, at any time, a road certified officer is determined by a supervisor to be performing below an acceptable level, the supervisor is to report to the Division Commander in writing of the findings. The Division Commander shall make a determination if the officer is to be placed under the supervision of an F.T.O. for additional training or if some other action is required, it is the Division Commander's option to place the officer with an F.T.O. on another platoon for training and/or evaluation to provide an un-baised evaluation for a designated period of time determined by the Division Commanders.

Approved:

Tracy L. Carter, Sheriff

POLICY: 06-03	DATE: 07-01-2012	REVISION DATE:
TITLE PAGE: Supplemental Training		PAGE: 1 of 6
RESPONSIBLE AUTHORITY: Chief Deputy		
REFERENCES: CALEA 33.5.1; 33.5.2; 33.5.3; 33.5.4; 33.6.1; 33.6.2; 33.7.1; 33.7.2; 33.8.1; 33.8.2; 33.8.3		

GENERAL PURPOSE: To establish a written framework for supplemental training to consist of in-service, advanced, and specialized training for new as well as seasoned employees.

POLICY: The Lee County Sheriff's Office shall ensure that employees receive effective, professional supplemental training that meets the needs of its employees and the public at large.

SPECIFIC PROCEDURES:

A. In-Service Training

1. All sworn personnel will participate in and complete an annual retraining program which includes legal updates and firearms requalification. All personnel will complete all training required by any State or Federal mandate. **(CALEA 33.5.1)**
2. All newly hired personnel will receive information about the accreditation process during new employee orientation. **(CALEA 33.5.3)**
3. Accreditation familiarization prior to each on-site review and during the self-assessment phase of the re-Accreditation process. **(CALEA 33.5.3b, c)**

B. Specialized Training

1. Relative specialized training is designed to enhance knowledge, skills and abilities particular to specialization. **(CALEA 33.6.1a)**
2. Relative specialized training should be made available to employees whose responsibilities involve management, supervision, or who have specialized job functions. **(CALEA 33.6.1b)**
3. The following specialized assignments specifically require job related specialized training:

- a. Special Response Team (SRT)
 - b. Animal Control
 - c. Training
 - d. Forensic Services
 - e. K-9
 - f. Any investigator
 - g. Search and rescue
 - h. Crisis Negotiators
 - i. Civil
 - j. Accreditation Manager **(CALEA 33.5.4)**
4. Any employee assigned to perform a specialized job shall be directed to attend training related directly to the specialized job duties as soon as practical following assignment, unless already trained. **(CALEA 33.6.1b)**
5. Training programs will address the functions for which both pre and post assignment specialized training are required. Supervised on-the-job training is an essential ingredient and occasionally the only means to provide specialized training. Supervised on-the-job training should be the product of a careful assessment by experienced staff. **(CALEA 33.6.1a)**
6. All personnel assigned to tactical teams, crisis negotiations, search and rescue must engage in training and readiness exercises. Training in their specialized areas will occur at the specialized unit level at regular intervals. Training outside the unit level will occur based on the needs of the specialized unit and the availability of specialized training. **(CALEA 33.6.2)**

C. Advanced Training

1. Advanced training is training designed to improve professional competence of employees who have demonstrated leadership capabilities. Advanced training may be considered the type of comprehensive program offered by the:
 - a. Institute of Police Technology and Management
 - b. North Carolina Justice Academy
 - c. Central Carolina Community College
 - d. Any equivalent training
2. The Sheriff will determine who is to attend advanced training courses. The selection will be based on considerations such as needs, career development, and sound management practices.
3. The following requirements should be satisfied by advanced training: **(CALEA 33.6.1b)**

- a. Management Theory
- b. Resource Utilization
- c. Supervisory Techniques
- d. Law Enforcement Administration

D. Civilian Training **(CALEA 33.7.1)**

- 1. All new, non-sworn personnel shall receive the following training:
 - a. Orientation to the Sheriff's Office including but not limited to, role, purpose, goals, policies, and procedures. **(CALEA 33.7.1a)**
 - b. Working conditions and regulations, Bloodborne Pathogens, Ethics, Sexual Harassment and Americans With Disabilities Act (ADA). **(CALEA 33.7.1b)**
 - c. Rights and responsibilities of Sheriff's Office employees. **(CALEA 33.7.1c)**
- 2. Civilian In-service Training
 - a. Civilian's shall undergo in-service training, as necessary to maintain job proficiency.
 - b. Clerical personnel, and switchboard operators shall receive customer in-service training on an on-going basis. **(CALEA 33.7.2)**
 - c. Civilian employees will receive annual inservice training as mandated by the Training Division. Training will include Ethics, Bloodborne Pathogens, OSHA and Americans with Disabilities Act (ADA).
 - d. Training Division will make every effort to ensure civilian employees receive training that will both benefit the agency and assist the employee in continual development of job skills.

E. Career Development Training

- 1. Personnel Specialists will receive specific instruction in communication skills and agency training opportunities as part of their career development responsibilities for agency personnel. **(CALEA 33.8.1)**
- 2. The Lee County Sheriff's Office will provide skill development

(training) to all personnel upon promotion. **(CALEA 33.8.2)**

3. Supervisors will receive training on performance evaluations and supervisor techniques for career development responsibilities. **(CALEA 33.8.3)**

F. Roll Call Training **(CALEA 33.5.2)**

1. Roll-call training provides an effective means of updating skills, knowledge and abilities between formal training sessions. Roll-call trainings should be conducted within each Division. The training division shall coordinate the agency's roll-call training program. Each instructor that provides roll call training must have all personnel sign an attendance roster. Roll-call training may include but is not limited to the following topics:
 - a. Agencies policies, procedures, rules and regulations.
 - b. Statutory or case law affecting law enforcement operations.
 - c. The functions of agencies in the local judicial operations.
 - d. The exercise of discretion.
 - e. Interrogation and interviewing techniques.
 - f. The agency's use of force policies.
 - g. The performance evaluation system.
 - h. Emergency fire suppression techniques.
 - i. Emergency medical services.
 - j. New or innovative investigative or technological techniques or methods.
 - k. Hazardous materials.
 - l. Contingency plans relating to special operations and unusual occurrences.
 - m. Crime prevention policies and procedures.
 - n. Evidence collection and preservation.

- o. Report writing and records systems procedures and requirements.

G. Responsibilities

1. Roll-call training shall be developed and implemented within the guidelines established in the training function.
2. The training division shall coordinate and monitor all roll-call training in conjunction with the Patrol Division.

H. Planning

1. Roll-call training shall be planned, coordinated and scheduled by the training division with input from all divisions.
2. The training division shall maintain records of all roll-call training sessions.

I. Techniques

1. Each individual assigned roll call instruction responsibilities shall ensure the material is presented in a manner which is conducive to learning and the material is properly covered and understood.

J. Instructional Methods

1. Those persons assigned to instruct roll-call training shall make every effort to ensure the subject matter is presented in an interesting and informative manner.
2. This may be accomplished by the use of handout material, multimedia techniques and lectures.
3. The material shall be included within the lesson plans provided by the training division.

K. Instructional Personnel

1. Instructional Personnel shall be assigned by the training division with input of the supervisors.
2. The selection of personnel shall be based on the skills, knowledge, abilities and motivation of individuals on particular topics.

L. Scheduling

1. The training division shall schedule roll-call training courses with input from patrol supervisors.
2. The scheduling will be structured so as to allot adequate time for completion without interfering with the operational readiness of the agency.
3. It shall be the responsibility of each division commander to ensure the training schedule is implemented, the program is properly documented and the documentation is properly forwarded to the training division.

M. Supervisor/Deputy Role

1. Each supervisor and Deputy is responsible for ensuring that the courses relate to field activities and meet the needs of the agency. Each supervisor and deputy shall actively participate and endeavor to cultivate an efficient and effective roll-call training program.
2. This evaluation and feedback shall be communicated to the individual instructors, who shall include this information in the written evaluation submitted to the training division.

Approved:

Tracy L. Carter, Sheriff

POLICY: 07-07	DATE: 05-01-2012	REVISION DATE:
TITLE PAGE: Search and Seizure		PAGE: 1 of 6
RESPONSIBLE AUTHORITY: Chief Deputy		
REFERENCES: Fourth Amendment of the United States Constitution		

GENERAL PURPOSE: The purpose of this policy is to establish a general procedure for conducting searches of premises with consent or with a search warrant (including a search warrant or an arrest warrant). This order does not apply to searches conducted without warrants based upon exigent (emergency) circumstances.

POLICY: The Fourth Amendment to the Constitution of the United States regulates searches and seizures of persons and property. It is necessary that searches be conducted in a reasonable manner in order to comply with the Constitution and policies of the Lee County Sheriff's Office.

The success or failure of any search is dependent upon positive leadership of the supervising officers and the discipline of the officers of the force involved. Individual opinions and actions must be subservient to the overall plan. An orderly search will ensue if the officers perform their assigned tasks without interfering with the job function of their fellow officers.

The search must be executed in a methodical manner. The use of careless or ill-considered procedures can only cause the search to become an exercise in futility. An unplanned search may result in unnecessary injury or death to officers or citizens. A search will be under the authority of one supervising officer who is in command of planning and executing the entire operation.

SPECIFIC PROCEDURES:

I. Definitions:

A "Search" is the organized, planned search of a person, vehicle, building or an area to effect an apprehension and/or to secure any evidence contained therein.

II. Consent Searches:

During the course of an investigation, it may become necessary to request permission to search a person, a vehicle, a house or building. "Consent" means a voluntary "statement", (see "Search and Seizure without a Warrant by Agency Personnel), to the officer giving the officer permission to search. When this situation arises, the following procedures will be followed:

- A. The consent to search will be obtained in writing whenever possible from:
 - 1. The person to be searched.
 - 2. The registered owner of a vehicle to be searched or the person in apparent control of the operation and contents of the vehicle at the time the consent is given. If the registered owner is present, his consent must be obtained.
 - 3. A person who by ownership or otherwise, is apparently entitled to give or withhold consent to a search of their premises.
 - B. The area to be searched will be clearly defined.
 - C. The person who consents to the search may, at any time during the course of the search, withdraw that consent. (It is not required, however, that officers advise him that he can withdraw consent). If consent is withdrawn, the search will cease immediately, unless probable cause to search has been established, in which case consent is not necessary to continue the search. In such cases, normal rules regarding the need for a search warrant will be followed.
 - D. Upon completion of the search, the officer in charge will supply a list of the items seized to the person who consented to the search.
- III. Search with a Search Warrant for Evidence of a Crime or for Contraband:

Preparation of the plan for execution of the search:

- A. The Division Commander shall approve all search warrant executions, and he shall designate a "Supervisor" to be in charge.
- B. The Supervisor in command of the search shall be responsible for:
 - 1. Reviewing the affidavit and warrant for accuracy and validity.
 - 2. Determining if any hazards exist and identifying said hazards.
 - 3. Determining the personnel needed.
 - 4. Determining the equipment needed, including but not limited to:

Digital camera, extra handcuffs, and weapons etc.

5. Instructing the officer concerning the plan for execution of the search warrant with respect to their job assignments. Ensuring that each individual understands his role and, if necessary, reducing each assignment to writing.
6. Determining that all non-uniformed personnel are wearing their badges on the upper left side of their garment.
7. Make every responsible effort to ensure that the correct premises is being entered. Verify by house or building description and when possible, the address. Having a sketch made of the premises to be searched, whenever possible.
8. Making sure that body armor is available to all personnel and requiring use of the same if indicated.

IV. The Search:

- A. The Supervisor shall coordinate the search with all other supervisors involved, particularly those within the team area the search is to take place.
- B. Whenever feasible, a deputy wearing body armor, shall knock, and before entering, give appropriate notice of his identity and purpose to the person to be searched or the person in apparent control of the premises to be searched. If it is unclear whether anyone is present at the premises to be searched, notice must be given in a manner likely to be heard by anyone present at the premises to be searched. After announcing identity and purpose, and if the Supervisor believes that admittance is being denied or unreasonably delayed, or that the premises is unoccupied, the force necessary to effect the entry can be used.

If the Supervisor has probable cause to believe that the giving of notice would endanger the life or safety of any person, the force necessary to effect entry may be used without notice having been given. When the Supervisor has probable cause to believe that “notice” would endanger the life or safety of any person then this information should be included in the search warrant affidavit that such a “no knock” authorization may be obtained from the issuing official.

- C. The search party shall enter the premises according to the pre-determined plan.

- D. At the onset of the search, any person(s) entering the premises should properly identify himself as a law enforcement officer and be in department uniform. Such department uniform may include the uniform or undercover clothing, raid jacket, and the individual officer(s) should wear some sort of body armor, if possible. The officer(s) should also conspicuously display their badge or other identification.
- E. When initial entry is made, uniformed personnel should also be stationed at all possible exits from the premises. If only one uniformed officer is present, he should be stationed at the most visible or obvious exit, and the remaining exits should be guarded by plain-clothed officers.
- F. Before undertaking any search or seizure pursuant to the warrant, the officer in charge of the search must read the warrant and give a copy of the warrant application and affidavit to the person in charge. If the premises is unoccupied, a copy of the warrant must be attached to the premises.
- G. Before the search begins, any person present can be patted down (frisk only) if the officer reasonably suspects them to be armed. Persons present at a search of non-public premises or vehicle not a common carrier may be detained by the search party. If the search fails to produce the items named in the warrant, those persons present at the time of the officers' entry may then be searched for the property particularly described in the warrant and may be seized or may be the basis for prosecution of any person so searched. For the purpose of this section, all controlled substances are the same type of property. Any other type of property found in such a search of persons may not be used for prosecution, but may be seized if contraband or stolen property.
- H. The search shall be conducted as quickly and thoroughly as possible and with as little damage to the premises as possible.
- I. Every legal effort shall be made to associate evidence with one of the occupants on the premises.
- J. Evidence discovered in various places on the premises shall be placed in separate envelopes or containers by the officer responsible for collecting the evidence and shall be marked to indicate where found, by whom, and how individual items of evidence are identified.
- K. Notes shall be made describing location of occupants, location of evidence, and the relationship of said location in or around the premises being searched. Photographs must be taken of primary evidence.
- L. Arresting officers shall determine the identity of the tenant of record for

the premises where the search was made.

V. Search Follow-up Procedures:

- A. At the completion of the search, the Supervisor shall inform the Division Commander.
- B. A search warrant must be executed within 48 hours of the issuance. After execution, the officer responsible for drawing the search warrant shall, without unnecessary delay, return the warrant to the Magistrate's or Clerk's Office, together with a written inventory of the items seized. The inventory must be signed and sworn to by the officer who drew the warrant.
- C. If an officer executing a search warrant discovers that an incorrect person, vehicle, or place has been searched, the Supervisor shall:
 - 1. Explain clearly that the Department made an error and, if possible, why the error was made.
 - 2. Apologize for any inconvenience.
 - 3. Notify the Legal Advisor's Office.
 - 4. Notify the Division Commander.

VI. Forcible Entry of Private Premises to Locate and Arrest a Fugitive

- A. If consent has not been given and there are no exigent circumstances, officers who want to enter the defendant's residence or other place the defendant is residing must have (1) the arrest warrant, or order for arrest in their possession, (2) reasonably believe that the person to be arrested is present inside.
- B. Officers may make a forcible entry into a third party's premises to arrest the subject of an arrest warrant only if the search warrant has been obtained for the premises, unless exigent circumstances exist justifying an

without a search warrant, or consent has been obtained from the occupant/resident.

- C. For lawful entry of any private premises pursuant to a search warrant or arrest warrant, officers should knock and, before entering, give appropriate notice of their identity and purpose to be entered. After announcing identity and purpose, if the officers believe that admittance is being denied or unreasonably delayed, the force necessary to effect the entry may be used. Officers need not give notice before entering when they have reasonable grounds to believe that giving the notice would present a clear danger to human life.

Approved:

Tracy L. Carter, Sheriff